S01 | meity_dpdp_rules_2025 | PDF page 27

8. Time period for specified purpose to be deemed as no longer being served.—(1) A Data Fiduciary, who is of such class and is processing personal data for such corresponding purposes as are specified in Third Schedule, shall erase such personal data, unless its retention is necessary for compliance with any law for the time being in force, or, for the corresponding time period specified in the Third Schedule, if the Data Principal neither approaches such Data Fiduciary for the performance of the specified purpose nor exercises her rights in relation to such processing.

(2) At least forty-eight hours before completion of the time period for erasure of personal data under this rule, the Data Fiduciary shall inform the Data Principal that such personal data shall be erased upon completion of such period, unless she logs into her user account or otherwise initiates contact with the Data Fiduciary for the performance of the specified purpose or exercises her rights in relation to the processing of such personal data.

(3) Without prejudice to sub-rules (1) and (2), a Data Fiduciary shall retain, in respect of any processing of personal data undertaken by it or on its behalf by a Data Processor, such personal data, associated traffic data and other logs of the processing for a minimum period of one year from the date of such processing, for the purposes as specified in the Seventh Schedule, after which the Data Fiduciary shall cause such personal data and logs to be erased, unless further retention is required for compliance with any other law for the time being in force or notified by the Government.

Illustration.

Case 1: X, a Data Principal purchases an e-book on an e-book platform Y. Once delivery is completed, the specified purpose of processing is served. The platform Y must retain the order details, personal data, and logs of the processing (such as order confirmation, payment, and delivery events) for at least one year from the date of the transaction, even if X deletes her account.

Case 2: X, a company engages a cloud service provider C as its Data Processor to host customer records. X as the Data Fiduciary, is required to ensure that the C also retains the data and associated logs for at least one year before erasure, unless any other applicable law requires a longer period.

9. Contact information of person to answer questions about processing.— Every Data Fiduciary shall prominently publish on its website or app, and mention in every response to a communication for the exercise of the rights of a Data Principal under the Act, the business contact information of the Data Protection Officer, if applicable, or a person who is able to answer on behalf of the Data Fiduciary the questions of the Data Principal about the processing of her personal data.

10. Verifiable consent for processing of personal data of child.—(1) A Data Fiduciary shall adopt appropriate technical and organisational measures to ensure that verifiable consent of the parent is obtained before the processing of any personal data of a child and shall observe due diligence, for checking that the individual identifying herself as the parent is an adult who is identifiable if required in connection with compliance with any law for the time being in force in India, by reference to—

(a) reliable details of identity and age of the individual available with the Data Fiduciary; or

(b) details of identity and age, voluntarily provided —

(i) by the individual; or

(ii) through a virtual token mapped to such details, which is issued by an authorised entity.

(2) In this rule, the expression—

(a) “adult” shall mean an individual who has completed the age of eighteen years;

(b) “authorised entity" shall mean —

(i) an entity entrusted by law or by the Central Government or by the State Government with the issuance of details of the identity and age or a virtual token mapped to such details; or

xi. Above provisions shall not be applicable for the instructions received from the clients by the DPs electronically in a manner approved by the Depository.

xii. Once a new DIS booklet is issued to a BO as per above provisions, old DIS issued to such a BO shall not be accepted by the DP. A period of one month may be given for receipt of DIS by the BOs. The DPs may accept old DIS during this transit period.[53] All the measures listed above under the head 'Monitoring of DIS' shall be made applicable to the DIS issued as per the provisions of this circular.

❖ **Acceptance of Delivery Instructions through Online Portal of Depository Participants[54]:**

While accepting delivery instructions through online portal of Depository Participants, Depositories need to ensure that investors' authentication is being carried-out by them, through Password/TPIN, along-with OTP, both generated at Depositories end, for each transaction.

❖ **Acceptance of Delivery Instruction through Online Portal of Intermediaries[55]**

1. Towards safeguarding the interest of the investors and market eco-system, it is decided that in case Depositories intend to permit acceptance of Delivery Instruction through Online Portal of intermediaries, they need to ensure that risk entailed by introducing such system are curtailed. Towards this end, Depositories need to incorporate necessary risk containment measures, including the following:

a) **e-DIS facility**: The facility of e-DIS has to be true to its label and should: -

i. Necessarily capture all details that are otherwise being captured in physical DIS, including settlement number and actual quantity to be transferred in case of on-market transfers.

ii. be an instruction towards actual transfer of securities to meet obligation for a single settlement number/date.

b) **Pre-trade authorization/ mandate**: If Depositories wish to continue providing the facility of enabling receipt of pre-trade mandate from client, Depositories should ensure the following:

i. The mandate should be received from client authorizing the concerned intermediary to transfer specific securities for meeting on-market settlement obligation only.

ii. Such mandate should necessarily pertain to a single settlement number/settlement date.

[53] Reference: SEBI Circular CIR/MRD/DP/22/2014 dated July 04, 2014
[54] Reference: SEBI Letter MRD2/DDAP/OW/P/2020/19443/1 dated November 13, 2020
[55] Reference: SEBI Letter SEBI/HO/MRD2/DDAP/OW/P/2021/1632/1 dated January 20, 2021

High risk	3
Medium High risk	2
Medium risk	1.5
Low risk	1

- Out of total intra depository instructions to be verified, the percentage of on and off market instructions would be in the ratio of 1/3 and 2/3.
- DIS issuance sample size shall be 5% of the total samples verified for DIS.

4.33.4.3 **Sample Sizes for inspection areas of 'Demat / Remat request' and 'Pledge/Unpledge'**

- 5% of Demat / Remat request processed or 100 requests whichever is higher with a maximum cap of 500 such requests.
- 5% of Pledge / Unpledge request processed or 100 requests whichever is higher with a maximum cap of 500 such requests.

4.33.4.4 **Sample Size for inspection area of 'Client Data Modification', 'Miscellaneous areas' and 'Other depository specific requirements'**

- Base Sample Size
  - Address change = 50
    - Samples from Urban, Semi Urban and Rural Areas shall be equally represented if available.
  - Nomination Change= 25
  - Signature change = 100
  - Addition / Deletion / Modification of POA = 100
  - Freeze/ Unfreeze= 50
  - Bank Details Change= 100
  - PAN modification = 100
  - Account closure initiated by clients = 25
  - Closure initiated by DPs = 25
  - Demat rejection = 30
  - Transactions = 25
  - Change in e-mail Id = 25
  - Change in mobile number = 25
  - Change in SMS flag = 50
  - Change in standing instruction flag = 50
  - Transmission = 50% of total transmission cases
  - Previous compliance = 100% of total samples
  - Final sample size shall be arrived at after multiplying with the respective multiplier corresponding to the DP Risk rating / categorization as given below.

2.9.7. **Other requirements in public issue process**

a) The additional text of data fields required to be included in the Application-and-bidding-form relating to UPI is placed at Part B of Annexure - 13.

b) The details of commission and processing fees payable to each intermediary and the timelines for payment shall be disclosed in the offer document.

c) The Merchant Banker shall ensure that the process of additional payment mechanism through UPI is disclosed in the offer document and in all the newspaper where issue advertisement is disclosed.][14]

2.9.8. [The blocking of funds accompanied with any revision of Bid, shall be adjusted against the amount blocked at the time of the original bid or the previously revised bid.][15]

2.9.9. The lead merchant banker shall ensure that adequate infrastructure is available with syndicate members for data entry of the bids in a timely manner.

2.9.10. The bidding terminals shall contain an online graphical display of demand and bid prices updated at periodic intervals, not exceeding thirty minutes.

2.9.11. The investment manager on behalf of the InvIT may decide to close the bidding by qualified institutional buyers one day prior to the closure of the issue subject to the condition that bidding shall be kept open for a minimum of three days for all categories of applicants and suitable disclosures made in the draft offer document and offer document.

2.9.12. No investor shall either withdraw or lower the size of bids at any stage.

2.9.13. The identity of Institutional Investors other than strategic investors making the bidding shall not be made public.

2.9.14. The stock exchanges shall continue to display on their website, the data pertaining to book built issues in a uniform format, inter alia giving category-wise details of bids received, for a period of atleast three days after closure of bids.

[14] Circular No. SEBI/HO/DDHS/DDHS_Div3/P/CIR/2022/085 dated June 24, 2022
[15] Circular No. SEBI/HO/DDHS/CIR/P/2019/16 dated January 15, 2019

भारतीय प्रतिभूति और विनिमय बोर्ड
Securities and Exchange Board of India

Table IV - Statement showing holding of specified securities by the Non-Promoter Non-Public shareholders

	Category & Name of the Shareholders (I)	PAN (II)	No. of shareholder (III)	No. of fully paid up equity shares held (IV)	Partly paid-up equity shares held (V)	No. of shares underlying Depository Receipts (VI)	Total no. shares held (VII = IV+V+VI)	Shareholding % calculated as per SCRR, 1957 As a % of (A+B+C2) (VIII)	Number of Voting Rights held in each class of securities (IX)				No. of Shares Underlying Outstanding convertible securities (including Warrants, ESOP, etc.) (X)	Total No of shares on fully diluted basis (including warrants, ESOP, Convertible Securities etc.) (XI)=(VII+X)	Total shareholding, as a % assuming full conversion of convertible securities (as a percentage of diluted share capital) (XII)	Number of Locked in shares (XIII)		Number of Shares pledged (XIV)		Non-Disposal Undertaking (XV)		Other encumbrances, if any (XVI)		Total Number of Shares encumbered (XVII) = (XIV+XV+XVI)		Number of equity shares held in dematerialized form (XVIII)
									No of Voting Rights			Total as a % of Total Voting rights														
									Class X	Class Y	Total					No. (a)	As a % of total Shares held (b)	No. (a)	As a % of total shares held (b)	No. (a)	As a % of total shares held (b)	No. (a)	As a % of total shares held (b)	No. (a)	As a % of total shares held (b)	
(1)	Custodian/DR Holder																	NA							
(a)	Name of DR Holder (If available)																	NA							
(i)	abc…																	NA							
(ii)	efg…																	NA							
	Sub-Total (C1)																								
(2)	Employee Benefit Trust / Employee Welfare Trust under SEBI (Share Based Employee Benefits and Sweat Equity) Regulations, 2021																	NA							
(a)	Name (abc…																	NA							
	Sub-Total (C2)																								
	Total Non Promoter - Non Public																	NA							

Annexure 17A

Format of BRSR Core

Sr. No.	Attribute	Parameter	Measurement	[170][Data & Assessment or Assurance Approach]	Cross – reference to the BRSR
1	Green-house gas (GHG) footprint *Greenhouse gas emissions may be measured in accordance with the Greenhouse Gas Protocol: A Corporate Accounting and Reporting Standard*	Total Scope 1 emissions (Break-up of the GHG into CO2, CH4, N2O, HFCs, PFCs, SF6, NF3, if available)	GHG (CO_2e) Emission in Mn MT / KT / MT Direct emissions from organization's owned- or controlled sources	1. Absolute Fossil Fuel (Coal, Natural Gas, Diesel, FO etc.) Consumption (Mn MT / KT / MT / MM BTU etc.) 2. Emission Factor (GHG in CO_2e / Unit of Measure) - IPCC or Actual Testing from Accredited Test Lab 3. Quantity of Carbon Capture (Mn MT / KT / MT) 4. GHG emissions in CO2 equivalent by process (Non-Fuel Source) (Mn MT / KT / MT / MM BTU) 5. Fugitive emissions 6. Total Scope 1 GHG Emissions: Point 2 x Point 1 - Point 3 + Point 4 + Point 5	Principle 6, Question 7 of Essential Indicators
		Total Scope 2 emissions (Break-up of the GHG (CO_2e) into CO2, CH4, N2O, HFCs, PFCs, SF6, NF3, if available)	GHG (CO_2e) Emission in Mn MT / KT / MT Indirect emissions from the generation of energy that is purchased from a utility provider	1. Total Consumption of Purchased Energy (MW), Steam (MT), Refrigeration (MMBTU) 2. GHG (CO_2e) Emission Factor across all purchased energy sources - IPCC or actual from the supplier (audited certificates) 3. Total Scope 2GHG Emissions: Total Consumption x Emission Factor	Principle 6, Question 7 of Essential Indicators

[170] Substituted with the issuance of Circular SEBI/HO/CFD/CFD-PoD-1/P/CIR/2025/42 dated Mar 28, 2025. Prior to its substitution the column title read as "*Data & Assurance Approach*".

भारतीय प्रतिभूति और विनिमय बोर्ड
Securities and Exchange Board of India

Appendix

LIST OF RESCINDED CIRCULARS		
S. No.	**Circular No. and Date**	**Subject / Title**
1.	SEBI RMB CIRCULAR NO. 1(98-99) dated June 05, 1998	Comprehensive clarification regarding various aspects of SEBI (Merchant Bankers) amendment regulations, 1997 and SEBI (merchant bankers) amendment regulations 1998
2.	RMB/CIRCULAR NO.4 (98-99) dated March 30, 1999	All registered merchant bankers
3.	RMB Circular No. 1 (2002-2003) dated September 17, 2002	Conditions for granting registration to applicants notwithstanding that a connected persons has been previously granted registration
4.	SEBI Cir. No. PMD/MBD/AK/24351/2002 dated December 17, 2002	Application procedure for registration/renewal as Merchant Banker
5.	MIRSD/ DPSIII/ Cir-24/ 08 dated July 25, 2008	Designated e-mail ID for regulatory communication with SEBI-Merchant Bankers
6.	SEBI Circular No. MIRSD/DPS III/Cir-01/07 dated January 22, 2007	Exclusive e-mail ID for redressal of Investor Complaints
7.	SEBI Circular No. CIR/MIRSD/14/2011 dated August 02, 2011	Revised procedure for seeking prior approval for change in control through single window
8.	SEBI Circular No. SEBI/HO/MIRSD/MIRSD1/CIR/P/2017/38 dated May 02, 2017	Online Registration Mechanism for Securities Market Intermediaries
9.	SEBI Cir. No. MIRSD/DPS-2/MB/Cir-16/2008 dated May 06, 2008	Reporting of information on a half yearly basis- Merchant Bankers
10.	SEBI Circular No. CIR/MIRSD/7/2011 dated June 17, 2011	Periodical report- Grant of prior approval to merchant bankers
11.	SEBI Circular No. CIR/MIRSD/6/2012 dated May 14, 2012	Review of Regulatory Compliance and Periodic Reporting
12.	SEBI RMB CIRCULAR NO. 2(98-99) August 11, 1998	Activities carried out by merchant bankers other than that in the securities
13.	SEBI Circular No. CIR/MIRSD/1/2012 dated Jan 10, 2012	Disclosure of Track Record of the public issues managed by Merchant Bankers,
14.	SEBI/HO/CFD/DIL1/P/CIR/2021/0660 November 23, 2021	Publishing Investor Charter and Disclosure of Complaints by Merchant Bankers on their Websites
15.	SEBI/HO/MIRSD/DOR/CIR/P/2021/46	Transfer of business by SEBI registered

scheme documents and the same shall not be considered as fundamental attribute change for the scheme.

13.13.2. InvITs shall continue to be classified as hybrid instruments for the purpose of investments by Mutual Funds and SIFs.

13.13.3. Existing investment in REITs held by debt schemes of Mutual Funds and investment strategies of SIFs as on December 31, 2025, shall be grandfathered. However, AMCs are encouraged to make efforts to divest REITs from respective portfolios of debt schemes considering the market conditions, liquidity and interest of investors.

13.13.4. Any inclusion of REITs in the equity indices shall be carried out only after a period of six months i.e. **July 01, 2026**

13.13.5. Investment limits for investment by Mutual Fund Schemes in units of InvITs:

Sr. No.	**Description**	**Maximum Investment Limit for MF Schemes**	**Remarks**
a)	Investment by mutual fund under all its schemes	10% of units issued by a single issuer of InvIT	
b)	Investment by a mutual fund scheme in the units of InvITs	10% of NAV of MF scheme	Such limits shall not be applicable for investments in case of index fund or sector or thematic scheme pertaining to InvIT.
c)	Investment by a mutual fund scheme in the units of InvIT issued by a single issuer	5% of NAV of MF scheme	

13.13.6. Any existing scheme intending to invest in units of InvITs shall abide by the provisions of Regulation 22 (9)(c), and unit holders of the scheme shall be given a time period of at least 15 calendar days for the purpose of exercising the exit option.

13.14. Inter Scheme Investments

delivery obligations.

1.2.4. **Order Review** –Whether the system has capability to facilitate review of such orders were not validated by the system.

1.2.5. **Back testing for effectiveness of RMS** – Whether the system has capability to identify trades which have exceeded the pre-defined limits (Order Quantity and Value Limits, Symbol wise User Order / Quantity limit, User / Branch Order Limit, Order Price limit) and also exceed corresponding margin availability of clients. Whether deviations from such pre-defined limits are captured by the system, documented and corrective steps taken.

1.2.6. **Log Management** – Whether the system maintains logs of alerts / changes / deletion / activation / deactivation of client codes and logs of changes to the risk management parameters mentioned above. Whether the system allows only authorized users to set the risk parameter in the RMS.

1.3. **Password Security**

1.3.1. **Organization Access Policy** – Whether the organization has a well-documented policy that provides for a password policy as well as access control policy for the exchange provided terminals.

1.3.2. **Authentication Capability** – Whether the system authenticates user credentials by means of a password before allowing the user to login, and whether there is is a system for authentication of orders originating from Internet Protocol by means of two-factor authentication, including Public Key Infrastructure (PKI) based implementation of digital signatures.

1.3.3. **Password Best Practices** – Whether there is a system provision for masking of password, system prompt to change default password on first login, disablement of user id on entering multiple wrong passwords (as defined in the password policy document), periodic password change mandate and appropriate prompt to user, strong parameters for password, deactivation of dormant user id, etc.

1.4. **Session Management**

1.4.1. **Session Authentication** – Whether the system has provision for Confidentiality, Integrity and Availability (CIA) of the session and the data transmitted during the session by means of appropriate user and session authentication mechanisms like SSL etc.

1.4.2. **Session Security** – Whether there is availability of an end-to-end encryption for all data exchanged between client and broker systems. or other means of ensuring session security.

1.4.3. **Inactive Session** – Whether the system allows for automatic trading session logout after a system defined period of inactivity.

iii. The cloud services shall be taken only from the Ministry of Electronics and Information Technology (MeitY) empaneled CSPs. The CSP's data center should hold a valid STQC (or any other equivalent agency appointed by Government of India) audit status. For selection of CSPs offering PaaS and SaaS services in India, RE shall choose only such CSPs which:
    1. Utilize the underlying infrastructure of MeitY empaneled CSPs for providing services to the RE.
    2. Host the application/ platform/ services provided to RE as well as store/ process data of the RE, only within the data centers as empaneled by MeitY and holding a valid STQC (or any other equivalent agency appointed by Government of India) audit status.

iv. In a multi-tenant cloud architecture, adequate controls shall be provisioned to ensure that data (in motion, at rest and in use) shall be isolated and inaccessible to any other tenant. RE shall assess and ensure that the multi tenancy segregation controls are placed by CSP, and shall place additional security controls if required.

v. Data shall be encrypted at all lifecycle stages (at rest, in motion and in use), source or location to ensure the confidentiality, privacy and integrity.

vi. RE shall retain complete ownership of all its data, encryption keys, logs etc. residing in cloud.

vii. Compliance with legal and regulatory requirements, including the requirements provided in this framework, has to be ensured by the RE at all times.

viii. The cloud deployments of RE shall be monitored through Security Operations Centre (SOC) [in-house, third-party SOC or a managed SOC].

ix. The agreement between the RE and CSP shall cover security controls, legal and regulatory compliances, clear demarcation of roles, and liabilities, appropriate services and performance standards etc.

x. The reporting of compliance (with this framework) shall be done by the REs in their systems audit, cybersecurity audit and VAPT reports, and it shall be done in the standardized format notified by SEBI from time to time

The cloud framework provides mandatory requirements to be fulfilled by the RE for adopting cloud computing to augment the business prospects through scalability,